



Delaware County Commissioners Meeting February 21st 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=5EIKgE9LLTA
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Delaware County Commissioner Meeting Summary

Meeting Date: February 21, 2023

Meeting Time: 9:04 AM

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The regular meeting of the Delaware County Commissioners was called to order at 9:04 AM on Tuesday, February 21, 2023, by the presiding officer. The meeting opened with the Pledge of Allegiance.
- **Attendance:**
 - **Present:** Mr. King, Ms. Reagan (or Mr. Dragon/Reagan per roll call), Mr. Henry (or Mr. Sanring/Henry).
 - **Absent:** None noted.
 - **Presiding Officer:** Not explicitly designated by formal title, but led proceedings alongside fellow commissioners.
- **New Staff Introduction:** Sarah Hodges was introduced as the new Administrative Assistant.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
- **Approval of Minutes:** Approved the minutes from the February 6, 2023 meeting. (Approved by roll call vote: Mr. King - Yes, Ms. Reagan - Yes, Mr. Henry - Yes).

4. Substantive Business & Board Action

- **00:02:11 Appointment: Civic Center Authority Board**
 - **Sponsor / Presenter:** Dave Hanauer / Board request.
 - **Deliberation Summary:** The board discussed filling an open seat on the Civic Center Authority Board. Dave Hanauer, a businessman with a security background, was recommended for the position.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King - Yes, Mr. Reagan - Yes, Mr. Henry - Yes).
- **00:02:14 Presentation & Discussion: Expansion of the High-Tech Crimes Unit**
 - **Sponsor / Presenter:** Charles (Director of the High-Tech Crimes Unit).
 - **Deliberation Summary:** The director presented the need for unit expansion due to maximum spatial density and increasing service demands (operating in its second year with a staff of three). Proposed moving into a space behind family support. The board discussed funding constraints, noting that while they support the unit's expansion and space allocation, department heads must ensure long-term financial sustainability without relying solely on future commissioner bailouts.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to approve moving forward with space expansion and seeking available funding. Approved by roll call vote (Ms. Reagan - Yes, Mr. King - Yes, Mr. Henry - Yes).
- **00:08:14 Bids: Material Bids (Asphalt, Crushed Stone, Sand, Fuel)**
 - **Sponsor / Presenter:** Angie (Highway Department).
 - **Deliberation Summary:** Presented bid tabulation sheets for asphalt mixes, crushed stone, sand, and fuel. Past practice has been to award all bidders.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to accept all bidders. Approved by roll call vote (Mr. King - Yes, Ms. Reagan - Yes, Mr. Henry - Yes).
- **00:09:01 Bids & Contract: 2023 Road Paving Projects**
 - **Sponsor / Presenter:** Angie (Highway Department).
 - **Deliberation Summary:** Reviewed bid tabulation sheets for five road paving projects funded partially by a Community Crossings award (50% state funded). First

Brooks Construction was the apparent low bidder at \$1,461,727. Form 96 and the contractor's agreement were presented for signing.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Motion made to award the contract to First Brooks Construction. Approved by roll call vote (Mr. King - Yes, Mr. Reagan - Yes, Mr. Henry - Yes).
- **00:10:15 Road Right-of-Way Dedication: Howell Place (Salem Township)**
 - **Sponsor / Presenter:** Kathy Van Nice (Ashton Land Surveying).
 - **Deliberation Summary:** Request to dedicate road right-of-way for 700 West in Salem Township following platting committee approval, dividing a house/barn parcel (3.45 acres total, with 0.25 acres for road right-of-way dedication). The new subdivision is named Howell Place.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to approve. Approved by roll call vote (Mr. King - Yes, Ms. Reagan - Yes, Mr. Henry - Yes).
- **00:11:16 Grant Acceptance: Meno Brothers Foundation Grant for AEDs**
 - **Sponsor / Presenter:** County staff.
 - **Deliberation Summary:** Request to accept a \$5,000 rapid grant from the Meno Brothers Foundation toward the purchase of Automated External Defibrillators (AEDs).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to approve the grant acceptance. Approved by roll call vote (Mr. King - Yes, Ms. Reagan - Yes, Mr. Henry - Yes).
- **00:11:50 Grant Notification: Indiana Youth Institute Professional Development Grant**
 - **Sponsor / Presenter:** Lily Anderson (Juvenile Probation / Court Administrator).
 - **Deliberation Summary:** Provided informational copy of a state/Lily endowment-funded grant applied for by juvenile probation. Tied to a subsequent ordinance.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Informational item only; no formal vote required at this stage.
- **00:12:23 Rezoning Report: Jackson Family Trust (Ordinance 2023-004)**
 - **Sponsor / Presenter:** Kathy Van Nice (Ashton Land Surveying).
 - **Deliberation Summary:** Request to rezone a 9.73-acre parcel (former fertilizer substation/railroad area) from Intense Industrial back to Agricultural to facilitate dividing a house from barns. First hearing and reading completed at the Plan Commission. Designated as Ordinance 2023-004.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to approve. Approved by roll call vote (Ms. Reagan - Yes, Mr. King - Yes, Mr. Henry - Yes).
- **00:14:28 Rezoning Report: Trudy Hudson Property (Ordinance 2023-005)**
 - **Sponsor / Presenter:** Trudy Hudson / Plan Commission.

- **Deliberation Summary:** Request to rezone property from R5 to R2 to match surrounding lots owned by the applicant, who plans to build a home and storage barn. First reading occurred at the Plan Commission. Designated as Ordinance 2023-005.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to adopt Ordinance 2023-005 and approve the request. Approved by roll call vote (Mr. King - Yes, Mr. Henry - Yes, Mr. Reagan - Yes).
- **00:16:10 Annual Report: Plan Commission / Building Department Annual Project Report**
 - **Sponsor / Presenter:** Tom Foutch (Stover County Building Commissioner).
 - **Deliberation Summary:** Reviewed 2022 construction activity compared to the previous three years. Noted a strong year in building permits (over 800 permits) despite 2021 reflecting a large outlier year due to Camp Tec. Praised office staff Brandi and Danelle.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Informational report; received by the board.
- **00:18:15 Agreement Amendment: Youth Opportunity Center (YOC) Memo of Understanding**
 - **Sponsor / Presenter:** County staff / YOC representatives.
 - **Deliberation Summary:** Presented a supplemental MOU modifying the existing agreement between the county and the Youth Opportunity Center. Funding remains unchanged, but terms are updated to allow some funds to be used for capital projects and to adjust bed counts to more realistic usage numbers for Delaware County.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to approve the MOU. Approved by roll call vote (Mr. King - Yes, Mr. Reagan - Yes, Mr. Henry - Yes).
- **00:17:17 Vehicle Donation: Delaware County Sheriff's Department to Carthage Police Department**
 - **Sponsor / Presenter:** Tony Skinner (Delaware County Sheriff).
 - **Deliberation Summary:** Sheriff Skinner requested to donate an unoperational 2010 Dodge Charger (111,000+ miles, crashed twice, trade-in value quoted at \$2,500) to the small Carthage Police Department (Rush County, population under 1,000), which can repair and utilize it. Coupled with Resolution 2023-006.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to approve the vehicle donation along with Resolution 2023-006. Approved by roll call vote (Mr. King - Yes, Ms. Reagan - Yes, Mr. Henry - Yes).
- **00:22:06 Ordinance 2023-006: Indiana Youth Institute Professional Development Grant / Gang Awareness**

- **Sponsor / Presenter:** Emily Anderson (Court Administrator).
 - **Deliberation Summary:** Introduction, suspension of rules, and adoption of Ordinance 2023-006 regarding Lily Endowment grant funding for juvenile probation officers to attend gang recognition and intervention training. Utilizes a buy-one-get-one-free registration offer to send two officers instead of one. Delaware County is recognized as a community with criminal gang activity.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Introduced, rules suspended, and adopted as Ordinance 2023-006 by unanimous roll call vote (Mr. King - Yes, Ms. Reagan - Yes, Mr. Henry - Yes).
- **00:24:04 Ordinance 2023-003: Amendment to the Traffic Code (Second Reading)**
 - **Sponsor / Presenter:** County staff.
 - **Deliberation Summary:** Second reading and adoption of ordinance implementing various stop sign and speed limit changes following a public hearing on February 6th.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to adopt the ordinance. Approved by roll call vote (Mr. King - Yes, Ms. Reagan - Yes, Mr. Henry - Yes).
- **00:24:50 Resolution 2023-007: Approval of 2022 Official Zone Map Changes**
 - **Sponsor / Presenter:** Lori Stenton (Commission Planner).
 - **Deliberation Summary:** Annual administrative resolution verifying that zone changes approved by the commissioners in 2022 are accurately reflected in the official county zone maps. (Note: Erroneously referenced initially as Resolution 2023-007 / Ordinance 2023-007).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to approve. Approved by roll call vote (Ms. Reagan - Yes, Mr. King - Yes, Mr. Henry - Yes).
- **00:25:55 Administrative Policy: County Email Forwarding Policy**
 - **Sponsor / Presenter:** Commissioner / Legal Counsel.
 - **Deliberation Summary:** Discussed the need for a formal policy regarding county employee email addresses. When personnel change jobs within the county, email addresses should change (e.g., altering naming conventions from first initial/last name) rather than carrying old department emails forward, preventing communication lapses. Legal counsel (John) requested to draft a formal policy.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to approve the new policy direction. Approved by roll call vote (Mr. King - Yes, Ms. Reagan - Yes, Mr. Henry - Yes).
- **00:29:29 IT / Department Update: Justice Center Additional Phones & Network Switch**
 - **Sponsor / Presenter:** Jim Flute (IT Department).
 - **Deliberation Summary:**

1. Requested purchase of two IP phones (\$199 each) for new adult probation / Jump program staff at the Justice Center, to be placed under the commissioners' telecom umbrella and paid for via grant funds.
 2. Requested purchase of a network switch for \$7,100 (funded out of EDIT / building fund) to expand network port capacity in the main NOC room at the Justice Center.
 3. Announced upcoming New World software version upgrade scheduled for March 7th, which will cause brief public safety downtime.
- **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:**
 - Phone purchase/umbrella addition: Approved by roll call vote (Mr. King - Yes, Mr. Reagan - Yes, Mr. Henry - Yes).
 - Network switch purchase (\$7,100): Approved by roll call vote (Mr. King - Yes, Ms. Reagan - Yes, Mr. Henry - Yes).
- **00:35:14 Department Update: Emergency Management Agency (EMA) Appreciation Week**
 - **Sponsor / Presenter:** John Catino (EMA Director).
 - **Deliberation Summary:** Recognized EMA Appreciation Week and thanked staff (Heidi Knuckles, Corey Kissick, Kyle Johnson). Highlighted ongoing multi-hazard mitigation plan updates, event pre-planning, family emergency preparedness tips, and a partnership bringing the CERT (Community Emergency Response Team) training program into Muncie Schools' career center public safety course.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Informational report only.
 - **00:40:18 Administrative Discussion: Elected Official Parking Spaces**
 - **Sponsor / Presenter:** Commissioners / John.
 - **Deliberation Summary:** Commissioners discussed issues regarding unauthorized vehicles taking up designated elected official parking spaces on the west side of the County Building. Discussed drafting a resolution to officially designate spots, enforce towing, clarify state vs. city jurisdiction on street parking, and promote alternative employee parking at the county lot on Washington Street.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Direction given to draft a resolution and review signage. No formal vote taken.
 - **00:45:23 Financial Claims Approval**
 - **Sponsor / Presenter:** County staff.
 - **Deliberation Summary:** Review of regular claims (\$958,259) and ARP claims (\$84,920).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion made to pay the claims. Approved by roll call vote (Mr. King - Yes, Mr. Reagan - Yes, Mr. Henry - Yes).

5. Open Public Comment / Citizen Forum

- **00:45:51 Tim Nickum**
 - Expressed sadness over the passing of Marta Moody and appreciation for her decades of service and her dedicated staff.
 - Spoke as a private citizen regarding the utility-scale solar ordinance and steering committee. Noted that setbacks remain a major concern for residents and that recent committee discussions were cut short due to harvest time and illness. Provided an informational article from DeKalb County regarding novel setback requirements.
 - Inquired whether recommendations and voted-upon changes from the solar steering committee will be made public before reaching the Plan Commission. Commissioners and staff noted that while notes exist, formal typed minutes are limited due to Marta Moody's illness, and suggested the committee may reconvene before final Plan Commission action.
 - Raised concerns regarding potential state preemption of local solar ordinances; commissioners and legal counsel noted that if the state adopts a uniform statewide standard, local ordinances could be overridden regardless of local adoption speed.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Commissioner announced the next meeting is scheduled for March 6, 2023, noting he may attend via Zoom due to upcoming knee surgery on March 3rd.
 - Reminder to submit meeting agenda items to Sarah Hodges.
- **Adjournment:** Motion made and seconded to recess/adjourn. Approved by roll call vote (Mr. King - Yes, Ms. Reagan - Yes, Mr. Henry - Yes).

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